

File No.: EXP202303563

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 16, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against MORENO Y ARANA, S.L. (hereinafter, the respondent), through the Agreement transcribed below:

<<

File No.: EXP202303563

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 28, 2023. The complaint is directed against MORENO Y ARANA, S.L. with NIF B39801519 (hereinafter, the respondent).

In the received document, the following is reported:

The complainant states that, during a dinner with colleagues from their company, at a restaurant in ***LOCALITY.1 owned by the respondent, images were captured by the surveillance system of that establishment showing their partially naked torso. They claim that these images were disseminated to a coworker, having learned of this through a conversation via WhatsApp with the latter, who informed them that they had received said recordings.

To substantiate these facts, the complainant provides the following along with their document:

- Images from the restaurant's surveillance system, at the moment when the complainant appears with a bare torso.
- Screenshots showing the WhatsApp conversation with the coworker who claims to possess the recording. According to this screenshot, the conversation took place on March 16, 2022, and begins with the sending of the video in question by the complainant's coworker.
- A report filed with their company regarding an alleged situation of sexual harassment due to the dissemination of the recorded images.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to MORENO Y ARANA, S.L. with NIF B39801519, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified electronically on March 22, 2023, as evidenced by the acknowledgment of receipt in the file.

No written response has been received to date from the forwarding made by this authority to said entity.

THIRD: Likewise, in accordance with the aforementioned Article 65.4 of the LOPDGDD, this complaint was forwarded to Mr. B.B.B. with DNI No. ***NIF.1, a coworker of the complainant with whom they had the instant messaging conversation, so that he could analyze it and inform this Agency within one month regarding the events that are the subject of this initiation agreement.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 2, 2023, as evidenced by the acknowledgment of receipt in the file.

On May 11, 2023, a document from the aforementioned coworker was registered with this authority, providing various information, of which the following stands out:

- That he received the images subject to the complaint on his mobile phone via WhatsApp.
- That, as soon as he became aware of this receipt, he contacted the respondent to inform them.

- That once he communicated this fact to the respondent, he proceeded to delete the mentioned file. Attached to his document, among other documentation, are images of the WhatsApp conversation held with the complainant on March 16, 2023, where the video subject to the complaint appears.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/13

Upon receiving the response, this authority again requested additional information from B.B.B.; in particular, the source of the content of the video in question that was received on their mobile device. This request was addressed through a new document dated 22/05/2023, in which it is stated that “the source of the content subject to this claim has been Mr. C.C.C., who sent the content to my representative via WhatsApp. Mr. C.C.C. works, or worked, at the restaurant where the events occurred, Restaurant ***RESTAURANTE.1 in ***LOCALIDAD.1.” Regarding the reason or motive for obtaining said content, it is stated in their document that it was because the aforementioned restaurant worker, upon recognizing them as a regular customer of the establishment and for legal purposes, requested their help in identifying the claiming party due to complaints that had been made by certain customers who were present in the restaurant on the day the events occurred. No document or screenshot is provided in this regard to substantiate the mentioned conversation with the restaurant worker or the sending of the video by the latter.

FOURTH: According to the report obtained from the AXESOR tool, the entity MORENO Y ARANA, S.L. is a small company with a turnover of XXXXXX euros for the year 2021.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Obligation Breached under Article 5.1 f) of the GDPR

Article 5.1 of the GDPR establishes the principles relating to processing, indicating, among other issues, that personal data shall be:

“f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (“integrity and confidentiality”).”

In the present case, from the documentation provided in the complaint and the information derived from the transfers made prior to the initiation of this procedure, it is evident that recordings captured by a venue belonging to the respondent have been disseminated, in which the claiming party appears. This fact highlights the lack of application of adequate measures of all kinds, both technical and organizational, that guarantee the confidentiality of personal data; in particular, that of the claiming party.

The existence of such recordings is clearly deduced from the images provided along with the complaint, which show a table of various diners in a restaurant where the image of the claiming party is visible with their torso partially exposed.

Regarding the dissemination of said recording, this is inferred from the conversation held via the mobile messaging application WhatsApp between the respondent and the colleague, which is initiated

by the latter through a message in which the video subject to this complaint is shared, and whose content is repeatedly referenced in the aforementioned conversation.

Similarly, this fact is also confirmed by the document submitted by the mentioned colleague after the transfer made by this authority, in which they expressly state that they received said recordings via WhatsApp from a worker at the restaurant where the events occurred. All these circumstances indicate a presumed violation of the confidentiality duty established by Article 5.1. f).

III

Classification and Qualification of the Infraction for Breach of Article 5.1 f) GDPR

In accordance with the evidence available in this initiation agreement of the sanctioning procedure and without prejudice to what results from the instruction, this authority considers that a presumed leak of a video captured in a venue owned by the respondent has occurred, in which the claiming party appears with their torso partially exposed, having had access to said recording colleagues of the claiming party, which constitutes a possible violation of the confidentiality duty provided for in the aforementioned Article 5.1. f) of the GDPR.

If this breach of Article 5.1.f) of the GDPR is confirmed, it could constitute an infringement classified under Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or,"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/13

In the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For its part, for the purposes of the statute of limitations, Article 72 "Very Serious Infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

IV

Sanction for non-compliance with Article 5.1. f) of the GDPR

The indicated infringement may be sanctioned with a fine of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Furthermore, in this case, it is considered appropriate to adjust the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR, in the following terms:

As aggravating factors:

"a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;"

The presence of this aggravating factor arises from the nature of the disseminated images, where the claimant appears with a partially naked torso, which implies that the claimant's knowledge of the dissemination of such images to third parties and their possible storage entails greater harm than if it were recordings without such circumstances.

No mitigating circumstances are observed.

Taking into account the general conditions for the imposition of administrative fines established by the aforementioned Article 83.5 of the GDPR, as well as the aggravating factors assessed by the present authority, considering the circumstances of this case and without prejudice to what results from the instruction of this procedure, it is deemed appropriate to set a possible sanction of a fine of 7,000 € (SEVEN THOUSAND EUROS).

V

Obligation breached under Article 32 GDPR

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the controller and the processor to implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of probability and severity for the rights and freedoms of the data subjects.

Likewise, the security measures must be adequate and proportional to the detected risk, indicating that the determination of technical and organizational measures should be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to

the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm. In this regard, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of processing and apply measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their application in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly susceptible to causing physical, material, or immaterial harm.”

In the present case, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to the respondent for violation of Article 32 of the GDPR.

Thus, from the documentation provided, there are evident indications of the absence of appropriate technical and organizational security measures to ensure an adequate level of security relative to the risk. The absence of such security measures is manifested in the access and capture by any employee of the images captured by the video surveillance cameras, in addition to the subsequent dissemination of the same. Such non-compliance would occur even if the content of the images captured by the video surveillance cameras had not been disseminated to third parties.

It must be taken into account that recording through video cameras within an establishment open to the public must guarantee adequate security measures that prevent unlawful or inappropriate processing of such recordings; especially when such cameras directly record attendees, as occurs in the present case and is evident from the images provided in the complaint.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/13

Consequently, the failure to adopt such security measures appropriate to the risk by the data controller or the data processor in order to guarantee the confidentiality and integrity of the captured images constitutes a presumed breach of the obligation set forth in Article 32 of the GDPR.

VI

Classification and qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates: “In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations: those that involve a substantial violation of the articles mentioned therein and, in

particular, the following:

(...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

VII

Sanction for the infringement of Article 32 of the GDPR

The indicated infringement may be sanctioned with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.4 of the GDPR.

Furthermore, in the present case, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established by Article 83.2 of the GDPR:

As aggravating factors:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/13

“b) the intentionality or negligence in the infringement;”

The presence of this aggravating factor is manifested in the fact that images captured by the surveillance camera of the establishment owned by the respondent appeared in a WhatsApp conversation of a colleague of the claimant. This fact denotes serious negligence, as adequate security measures that would have prevented it were not implemented, especially considering that the object of processing is the image of those present within the establishment.

No mitigating circumstances are observed.

Taking into account the general conditions for the imposition of administrative fines established by the aforementioned Article 83.2 of the GDPR, considering the circumstances of the present case and without prejudice to the outcome of the instruction of this procedure, a possible sanction of a fine of 3,000 € (THREE THOUSAND EUROS) is proposed.

VIII

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with what is established in the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

In such a case, in the resolution adopted, the controller may be required to notify this Agency within one month of the adoption of the following measures:

- Adopt the appropriate organizational and technical measures to ensure a level of security appropriate to the risk and to prevent personal data from being transmitted without the consent of their owners, specifically preventing access to the recordings from the surveillance cameras by any employee.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/13

FIRST: TO INITIATE SANCTIONING PROCEDURE against MORENO Y ARANA, S.L., with NIF B39801519, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, as well as for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of the same regulation.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of 7,000.00 euros (SEVEN THOUSAND EUROS), without prejudice to what results from the instruction.
- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of that regulation, an administrative fine of 3,000.00 euros (THREE THOUSAND EUROS), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to MORENO Y ARANA, S.L., with NIF B39801519, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 8,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 8,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
11/13

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

Furthermore, in order to prevent further infringements of the same nature, the acknowledgment of responsibility and the consequent application of the mentioned reduction will imply the acceptance, where applicable, of the measures to be adopted as proposed and indicated by this entity in the present agreement.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (8,000.00 euros or 6,000.00 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must send the proof of deposit to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/13

SECOND: On March 1, 2024, the respondent has proceeded to pay the sanction in the amount of 6,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/13

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303563, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER MORENO Y ARANA, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 1 month from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to MORENO Y ARANA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid
sedeagpd.gob.es